DISCIPLINARY POLICY

Artemis | Human Resources Division

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1. PURPOSE

This Disciplinary Policy establishes a fair, consistent, and transparent framework for addressing employee conduct and performance issues at Artemis. The objective of this policy is not punitive in nature, but rather to encourage positive behavioral change, maintain a respectful and productive work environment, and ensure that all employees are treated equitably in disciplinary matters.

Artemis is committed to upholding professional standards and organizational values. This policy serves as a guide for managers, HR professionals, and employees to understand their rights, responsibilities, and the consequences of misconduct or performance deficiencies.

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2. SCOPE

This policy applies to:

- All full-time and part-time employees of Artemis
- Contract employees and consultants engaged on long-term assignments
- Interns and trainees working under Artemis supervision
- Employees across all departments, levels, and locations

This policy applies to conduct occurring during working hours, on company premises, at company-sponsored events, or in any situation where the employee is representing Artemis.

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3. GUIDING PRINCIPLES

Artemis adheres to the following principles in all disciplinary matters:

3.1 Fairness & Consistency Every disciplinary case will be handled with objectivity and consistency, irrespective of the employee's designation, tenure, or department.

3.2 Proportionality The disciplinary action taken will be proportionate to the severity and frequency of the misconduct or performance issue.

3.3 Right to Be Heard Every employee has the right to present their side of the story before any disciplinary decision is made.

3.4 Confidentiality All disciplinary proceedings, records, and outcomes will be kept strictly confidential and shared only on a need-to-know basis.

3.5 Non-Retaliation Artemis strictly prohibits retaliation against any employee who raises a concern, files a complaint, or participates in a disciplinary investigation in good faith.

3.6 Documentation All disciplinary actions will be formally documented and maintained in the employee's personnel record.

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4. CATEGORIES OF MISCONDUCT

4.1 Minor Misconduct

Minor misconduct refers to isolated incidents of inappropriate behavior or performance lapses that do not cause significant harm but require correction. Examples include:

- Occasional tardiness or unexplained absence
- Failure to meet deadlines without prior communication
- Inappropriate tone or behavior in professional communication
- Minor violations of company dress code or workplace etiquette
- Unauthorized use of personal devices during work hours
- Failure to follow standard operating procedures on isolated occasions

4.2 Major Misconduct

Major misconduct refers to serious breaches of conduct or repeated minor misconduct that significantly impacts the workplace, colleagues, or the organization. Examples include:

- Repeated or habitual tardiness or absenteeism
- Insubordination or deliberate refusal to follow reasonable instructions
- Use of abusive, threatening, or discriminatory language
- Willful neglect of duties or responsibilities
- Misuse of company assets, resources, or intellectual property
- Unauthorized disclosure of confidential or proprietary information
- Falsification of records, timesheets, or expense reports
- Bullying, harassment, or intimidation of colleagues
- Violation of the company's IT or data security policies

4.3 Gross Misconduct

Gross misconduct represents the most severe category of policy violation and may result in immediate termination without prior warnings. Examples include:

- Theft, fraud, or financial dishonesty of any kind
- Physical assault or violence against any person on company premises
- Sexual harassment or any form of sexual misconduct
- Serious breach of data privacy or deliberate leakage of trade secrets

- Being under the influence of alcohol or illegal substances at the workplace
- Sabotage of company systems, data, or operations
- Bribery, corruption, or conflict of interest without disclosure
- Serious criminal conduct that impacts the company's reputation or operations
- Falsification of qualifications, credentials, or identity

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5. DISCIPLINARY PROCEDURE

Artemis follows a structured and progressive disciplinary process designed to give employees the opportunity to correct their behavior before escalating consequences are applied.

Stage 1 — Informal Counseling

Applicable for: First-time minor misconduct or early-stage performance concerns

The immediate manager or HR representative will have an informal, private conversation with the employee to:

- Highlight the observed behavior or performance gap
- Understand any underlying personal or professional challenges
- Agree on expected improvements and a reasonable timeline
- Offer support such as mentoring, training, or workload adjustments

Outcome: Informal counseling note maintained internally. No formal record placed in personnel file unless the issue recurs.

Stage 2 — Verbal Warning

Applicable for: Recurring minor misconduct after informal counseling, or a first instance of moderate misconduct

A formal verbal warning will be issued by the manager, with HR present. The warning will:

- Clearly describe the specific behavior or incident
- Reference any prior informal counseling sessions
- State the expected behavior going forward
- Inform the employee of potential consequences if behavior continues

Outcome: A written record of the verbal warning is created and retained in the employee's personnel file for a period of **6 months**. If no recurrence occurs, the warning is considered resolved.

Stage 3 — Written Warning (First)

Applicable for: Continued non-compliance after a verbal warning, or a first instance of major misconduct

A formal written warning letter will be issued, drafted by HR and signed by the employee's department head. The letter will include:

- A clear description of the violation or incident
- Reference to earlier warnings or counseling
- Expected improvements and a defined Performance Improvement Plan (PIP) timeline if applicable
- A statement of potential consequences including suspension or termination

Outcome: Written warning recorded in personnel file. Active for **9 months**. Employee acknowledgment is required.

Stage 4 — Final Written Warning

Applicable for: Failure to meet expectations set in the first written warning, or a serious isolated incident of major misconduct

A final written warning letter is issued, explicitly stating that any further violation may result in termination of employment. The letter will:

- Summarize the history of prior disciplinary actions
- Define specific, measurable behavioral expectations
- Set a monitoring period (typically 60–90 days)
- Inform the employee of their right to appeal

Outcome: Final written warning retained in personnel file. Active for **12 months**.

Stage 5 — Suspension (with or without pay)

Applicable for: Pending investigation of serious misconduct, or as a disciplinary measure following a final written warning

Artemis reserves the right to place an employee on suspension during an investigation to:

- Protect the integrity of the investigation
- Ensure the safety of other employees or company assets
- Prevent potential tampering with evidence or witnesses

Paid suspension will be applied in cases where guilt has not yet been established. **Unpaid suspension** may be applied as a formal disciplinary measure post-investigation for proven serious misconduct.

Duration: Typically not exceeding **30 calendar days**, unless extended by the Disciplinary Committee.

Stage 6 — Termination of Employment

Applicable for: Gross misconduct, failure to improve after final written warning, or repeated serious violations

Termination will be considered after:

- A formal investigation has been conducted
- The employee has been given an opportunity to respond
- The Disciplinary Committee has reviewed the case
- HR and Legal have confirmed compliance with applicable labor laws

In cases of **gross misconduct**, termination may be immediate and without prior warnings, subject to the investigation outcome.

Outcome: Termination letter issued with full & final settlement processed per Artemis's Separation Policy and applicable statutory requirements.

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6. INVESTIGATION PROCESS

6.1 Initiation

An investigation is initiated when a complaint is filed, a manager escalates an incident, or HR identifies a potential breach of policy.

6.2 Appointment of Investigating Officer

HR will appoint an impartial Investigating Officer (IO), typically a senior HR professional or a neutral department head with no conflict of interest in the matter.

6.3 Notification

The employee under investigation will be formally notified in writing of:

- The nature of the allegation
- The commencement of the investigation
- Their rights during the process

6.4 Evidence Gathering

The IO will gather relevant evidence including documents, emails, CCTV footage, system logs, and witness statements.

6.5 Employee Interview

The employee will be given a formal opportunity to respond to the allegations. They may be accompanied by a colleague or union representative (where applicable) but not by an external legal counsel during the interview.

6.6 Investigation Report

Upon completion, the IO will submit a confidential investigation report to the Disciplinary Committee with findings and recommended action.

6.7 Timeline

Investigations will typically be concluded within **21 working days**. Complex cases may be extended with written notification to the employee.

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7. DISCIPLINARY COMMITTEE

For cases involving major misconduct, suspension, or termination, a Disciplinary Committee will be constituted comprising:

- **HR Business Partner** (Chairperson)
- **Department Head** of the concerned employee
- **Legal/Compliance Representative** (for cases involving statutory implications)
- **Senior Management Representative** (for cases involving termination)

The committee is responsible for reviewing investigation findings, ensuring procedural fairness, and recommending the appropriate disciplinary action.

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8. EMPLOYEE RIGHTS DURING DISCIPLINARY PROCEEDINGS

Every employee at Artemis is entitled to:

- **Prior notice** of any disciplinary meeting or hearing
- **Access to relevant documentation** pertaining to the allegation against them
- **Right to respond** verbally or in writing to all allegations
- **Accompaniment** by a peer colleague or employee representative during formal hearings
- **Appeal rights** against any disciplinary decision
- **Protection from retaliation** for participating in good faith in any proceeding

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9. APPEALS PROCESS

9.1 Grounds for Appeal

An employee may appeal a disciplinary decision on the following grounds:

- New evidence not considered during the original investigation
- Procedural irregularities in the disciplinary process
- Disproportionate or inconsistent application of the disciplinary action

9.2 Filing an Appeal

The employee must submit a written appeal to the HR Division within **10 working days** of receiving the disciplinary decision. The appeal must clearly state the grounds and include any supporting evidence.

9.3 Appeals Committee

A separate Appeals Committee, comprising members not involved in the original decision, will review the appeal. The committee may:

- Uphold the original decision
- Reduce the disciplinary action
- Overturn the decision entirely
- Order a fresh investigation

9.4 Timeline

The Appeals Committee will communicate its decision within **15 working days** of receiving the appeal.

9.5 Finality

The decision of the Appeals Committee is final and binding within the internal grievance mechanism. Employees retain their rights under applicable employment law for external recourse.

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10. RECORD KEEPING

Disciplinary Action	Retention Period
Informal Counseling Note	6 months
Verbal Warning	6 months
First Written Warning	9 months
Final Written Warning	12 months
Suspension Record	Duration of employment + 3 years
Termination Record	Duration of employment + 5 years
Investigation Reports	Duration of employment + 5 years

Records are maintained securely by the HR Division and are accessible only to authorized personnel.

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11. RESPONSIBILITIES

Role	Responsibility
Employee	Adhere to company policies; respond honestly during proceedings

Role	Responsibility
Manager / Supervisor	Identify issues early; conduct informal counseling; escalate appropriately
HR Business Partner	Guide the disciplinary process; ensure procedural compliance
Disciplinary Committee	Review cases objectively; recommend proportionate action
Legal/Compliance	Ensure adherence to labor laws and statutory requirements
Senior Management	Approve termination decisions; ensure organizational consistency

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12. POLICY REVIEW

This Disciplinary Policy will be reviewed annually or as necessitated by changes in applicable labor laws, organizational structure, or internal requirements. Any amendments to this policy will be communicated to all employees through official HR channels.

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13. RELATED POLICIES

This policy must be read in conjunction with the following Artemis policies:

- Employee Handbook
- Code of Conduct & Ethics Policy
- Anti-Harassment & POSH Policy
- Grievance Redressal Policy
- Separation & Exit Policy
- Data Privacy & Confidentiality Policy
- IT & Acceptable Use Policy
- Whistleblower Policy

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14. ACKNOWLEDGMENT

By continuing employment at Artemis, all employees are deemed to have read, understood, and agreed to abide by the terms of this Disciplinary Policy. Employees are encouraged to contact the HR Division for any clarifications.